

SENATE BILL 2196

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 9 and Title 12, relative to procurement of
tires.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 12, Chapter 3, Part 5, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "One hundred percent (100%) French process zinc oxide" means zinc
oxide produced exclusively by the French or indirect process that is not blended
or combined with zinc oxide produced by any other process, including the
American or direct process, or any other materials;

(2) "Price list or buying guide" means a document, electronic or
otherwise, provided to this state for procurement purposes that lists tires
available for purchase, including, but not limited to, pricing, specifications, and
product designations;

(3) "Solicitation" means a solicitation, request for proposal, or invitation to
bid issued by this state or on behalf of this state for the procurement of goods or
services; and

(4) "Tire manufacturer or supplier" means a person, firm, corporation, or
other entity that manufactures, produces, supplies, or offers to supply tires to
this state, whether directly or through a distributor or agent.

(b) A tire manufacturer or supplier submitting a response to a solicitation for the
supply of tires issued by this state shall clearly identify and designate which tires offered

have been produced or manufactured with one hundred percent (100%) French process zinc oxide at the time of the submission. Such designation must be indicated by tire product and material number, be made in a manner prescribed by the chief procurement officer, and be included in all documentation submitted as a part of the procurement process.

(c) A price list or buying guide provided to this state by a tire manufacturer or supplier for procurement purposes must clearly indicate for each tire listed whether the tire has been produced or manufactured with one hundred percent (100%) French process zinc oxide. Such designation required by this subsection (c) must be conspicuous and in a format approved by the chief procurement officer.

(d) A tire manufacturer or supplier with an existing contract to supply tires to this state on the effective date of this act shall amend, within one hundred twenty (120) days of such date, each price list or buying guide used in connection with such contract to comply with the disclosure requirements set forth in this section. Failure to comply with this subsection (d) may result in the suspension or termination of the contract at the discretion of the chief procurement officer.

(e) If, during the term of a contract with this state, a tire manufacturer or supplier makes a change in the manufacturing process of any tire supplied under the contract that affects whether the tire is manufactured with one hundred percent (100%) French process zinc oxide, the manufacturer or supplier shall amend, within ninety (90) days of such change, each relevant price list or buying guide to reflect such change. The manufacturer or supplier shall provide written notice of such change to the chief procurement officer, to each relevant state agency utilizing the contract, and to each intermediary agency or entity that may be facilitating solicitations on behalf of this state.

(f) The chief procurement officer may promulgate rules as necessary to implement and enforce this section in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(h) As used in this section, unless the context otherwise requires, "state" includes an intermediary agency or entity facilitating solicitations on behalf of this state.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.